



Notification Waiver Determination

Brookfield Corporation Ltd – Brookfield Corporation and Brookfield Wealth Solutions Ltd

Acquisition	Brookfield Corporation Ltd (New Brookfield) applied for a notification waiver in respect of its proposed acquisition of 100% of the shares in Brookfield Corporation (Brookfield) and Brookfield Wealth Solutions LTD (BWS), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	9 September 2026

Parties to the Acquisition	The acquirer, New Brookfield, is a new company incorporated by BWS under the laws of Bermuda. It currently holds no assets and has no business activities. Brookfield is a Canadian incorporated global investment firm focused on building long-term wealth for institutions and individuals around the world. Brookfield has three core businesses: Alternative Asset Management, Wealth Solutions, and its Operating Businesses. Brookfield is a public company, co-listed on the New York Stock Exchange (NYSE) and the Toronto Stock Exchange (TSX). Brookfield, via its various subsidiaries and managed funds, has business activities and interest in Australia and invests across a range of sectors, including infrastructure, energy, real estate, and private equity. BWS is an investment-led insurance organisation that offers retirement services, wealth protection products, and tailored capital solutions to individuals and institutions. Through its operating subsidiaries, BWS offers a range of insurance products and services, including life insurance and annuities, and personal and commercial property and casualty insurance. BWS is incorporated under the laws of Bermuda. It is also a public company co-listed on the NYSE and TSX. The parties have entered into a Transaction Agreement pursuant to which Brookfield and BWS will be combined under the common ownership of a new parent company, New Brookfield.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. There will be no horizontal consolidation, removal of a competitor, or change to either of Brookfield's or BWS' competitive position as a result of the Acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC also considered the potential application of section 51ABD of the Act. However, the applicant submitted that one or more of the steps that will occur to put the Acquisition into effect may involve an acquisition that is required to be notified, and having regard to the particular circumstances, including the consequences of non-notification in reliance on section 51ABD if it was found not to apply, the ACCC considers it appropriate to make a determination on the basis that the acquisition provisions in the Act apply to the Acquisition. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act